

Sriram Dang v. State of U.P. And Others

Allahabad High Court · Division Bench · 6 June 2012 · Writ - C No. 29467 of 2012 · **Writ disposed of; petitioner may apply afresh; any such application to be considered under clause 4.4.**

HEADNOTE

A writ seeking to quash rejection of a fresh electricity connection, alleged to have been withheld because of a landlord dispute, was disposed of without a merits grant or refusal. The petitioner may make a fresh application with all requisites; if made, the respondents shall consider it in accordance with clause 4.4 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Sriram Dang filed a writ petition in the Allahabad High Court seeking certiorari to quash an order dated 23 May 2012 rejecting his application for a fresh electricity connection, and a mandamus directing the respondents to grant the connection. He alleged that supply was being withheld because of a dispute with his landlord. The respondents submitted that he had not applied after completing the necessary formalities and that no connection could therefore be given.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

fresh connection application

HOLDING

The Court did not quash the 23 May 2012 rejection or mandamus a connection. It left it open to the petitioner to make a fresh application with all requisites, and directed that if made, the respondents shall consider it in accordance with clause 4.4 of the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 23 MAY 2012 REJECTION WAS LAWFUL, AND WHETHER A LANDLORD DISPUTE BARRED A FRESH CONNECTION

Writ disposed by relegating the petitioner to a fresh application under clause 4.4; no finding on the alleged rejection or the landlord dispute. ¶ 1